

# FORENSIC INVESTIGATIVE REPORT

## *Systemic Institutional Failures – CCMA Conciliation Process & Employer Misconduct*

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|---------------------------------------|-----------------------------------------------------------------------------------|
| <b>Case Reference</b>                 | WECT24486-25 / WECT24564-25                                                       |
| <b>Subject</b>                        | Systemic Institutional Failures – CCMA Conciliation Process & Employer Misconduct |
| <b>Whistleblower</b>                  | Sr. Wilbur William Matthee                                                        |
| <b>Employer (Respondent)</b>          | AfroCentric Investment Corporation Limited / Medscheme Holdings                   |
| <b>CCMA Commissioner</b>              | Ntabiseng Ngwane (referred to as Nthabisen/Ntabiseng in correspondence)           |
| <b>Provincial Senior Commissioner</b> | Vusumzi Landu – Western Cape Region                                               |
| <b>Date of Conciliation</b>           | 9 January 2026                                                                    |
| <b>Date of Complaint Filed</b>        | 10 January 2026                                                                   |
| <b>Date of CCMA Response</b>          | 28 January 2026                                                                   |
| <b>Report Date</b>                    | 5 April 2026                                                                      |
| <b>Prepared By</b>                    | Independent Forensic Analyst (on behalf of Sr. W.W. Matthee)                      |
| <b>Classification</b>                 | <b>CONFIDENTIAL – LEGALLY PRIVILEGED</b>                                          |

*Prepared by EthicHawks Forensic Governance Consultancy | Cape Town, South Africa*

## EXECUTIVE SUMMARY

This report documents a cascade of institutional failures at the Commission for Conciliation, Mediation and Arbitration (CCMA) and concurrent misconduct by the employer AfroCentric during a conciliation hearing conducted on 9 January 2026. The applicant, Sr. Wilbur William Matthee, is a protected whistleblower under the Protected Disclosures Act (PDA) who attended the session while homeless, suffering from severe depression and PTSD, and unable to practise as a specialist nurse due to financial ruin caused directly by the employer's conduct.

### Key Findings:

- CCMA Commissioner Ntabiseng Ngwane exhibited prejudgment, bias, failure to assist a self-represented litigant, and failure to apply the Basic Conditions of Employment Act (BCEA).
- AfroCentric (Respondent) made contradictory, evasive, and potentially perjured statements; admitted to policies that violate the BCEA; and engaged in bad-faith conduct including laughing at a vulnerable litigant.
- Provincial Senior Commissioner Vusumzi Landu conducted a cover-up investigation – ignoring most allegations, defending indefensible conduct, and blaming the victim for recording the session.
- Systemic failure – The CCMA's internal complaint process is designed to protect commissioners, not to hold them accountable.

| # | Finding                                                   | Against             | Rating   |
|---|-----------------------------------------------------------|---------------------|----------|
| 1 | Prejudgment / closed mind                                 | Commissioner Ngwane | CRITICAL |
| 2 | Failure to assist self-represented litigant ("Google it") | Commissioner Ngwane | CRITICAL |
| 3 | Failure to apply BCEA Section 34                          | Commissioner Ngwane | CRITICAL |
| 4 | Systemic bias – uncritical acceptance of respondent       | Commissioner Ngwane | HIGH     |
| 5 | Tolerating mockery of vulnerable litigant                 | Commissioner Ngwane | HIGH     |
| 6 | Bad faith / contradictory statements                      | AfroCentric         | CRITICAL |
| 7 | Admission of BCEA violation (no staggering)               | AfroCentric         | CRITICAL |
| 8 | Potential perjury – Mr. Mandyati affidavit                | AfroCentric         | CRITICAL |
| 9 | Cover-up / whitewash of complaint                         | PSC Vusumzi Landu   | CRITICAL |

## SECTION 1: BACKGROUND & CONTEXT

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### 1.1 The Whistleblower

Sr. Wilbur William Matthee is a specialist nurse and protected whistleblower under the Protected Disclosures Act (PDA). He made multiple protected disclosures (Priority 1 Risk Reports) to AfroCentric's Board of Directors, Ethics Board, Risk Committee, and Lead Independent Director, commencing in May 2025.

### 1.2 Retaliatory Actions by AfroCentric

Following his disclosures, AfroCentric:

- Filed a retaliatory CCMA affidavit misgendering him, calling him 'untruthful,' 'sloppy,' and dismissing his mental health as an 'afterthought'
- Deducted over 40% of his salary without consultation or written consent (confirmed on transcript pp. 11–14)
- Refused reasonable accommodation for documented disability (mental health – severe depression and PTSD)
- Subjected him to victimisation, intimidation, and institutional silence at every level of the internal grievance hierarchy

### 1.3 Resulting Harm

- Homelessness
- Inability to pay nursing council registration fees – barred from practising his profession
- Severe depression and PTSD (documented medical records supplied to employer)
- Financial ruin
- Constructive dismissal (resigned due to unbearable working relationship)

### 1.4 The CCMA Conciliation

On 9 January 2026, Commissioner Ntabiseng Ngwane conducted a joint conciliation of Case WECT24486-25 (Constructive Dismissal – Section 186(1)(e)) and Case WECT24564-25 (Unfair Conduct – Section 186(2)). Conciliation failed. A Certificate of Outcome was issued. The applicant lodged a formal complaint the following day.

## SECTION 2: FORENSIC ANALYSIS – CCMA COMMISSIONER MISCONDUCT

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### 2.1 Finding #1 – Prejudgment (Closed Mind)

#### Evidence (Transcript, Page 3):

**Commissioner:** *"The file itself, nothing here relates to a protected disclosure dispute."*

Timing: This statement was made within minutes of the applicant identifying himself as a protected whistleblower under the PDA, before any substantive evidence was presented or tested.

Forensic Assessment: A commissioner cannot declare 'nothing here relates' without first hearing the substance of the claim. This constitutes failure to apply the mind and procedural irregularity. The commissioner was legally obliged to establish the nature of the dispute – but the characterisation occurred before that exercise was complete, evidencing a predetermined conclusion.

**Risk Rating: CRITICAL**

### 2.2 Finding #2 – Failure to Assist Self-Represented Litigant ("Google It")

#### Evidence (Transcript, Page 27):

**Applicant:** *"Okay, so how do I go about this? This is the Labour Court in Cape Town. I've never done this before."*

**Commissioner:** *"You're gonna have to... Google it or something like that."*

Context: The applicant had disclosed homelessness, psychiatric hospitalisation, mental health crisis, and complete inability to navigate the legal system without guidance.

Forensic Assessment: This conduct violates Section 138(1) of the Labour Relations Act (LRA) and the CCMA's own "helping hand" principle applicable to self-represented and vulnerable litigants. A commissioner who does not know the Labour Court's address has a professional duty to ascertain that information or refer the litigant to a person who can assist. The Provincial Senior Commissioner's defence – that the commissioner was 'from Johannesburg and not familiar with Cape Town' – compounds rather than excuses the failure. Directing a destitute, mentally distressed, homeless whistleblower to 'Google it' constitutes a dereliction of duty.

**Risk Rating: CRITICAL**

### 2.3 Finding #3 – Failure to Apply BCEA Section 34 (Unlawful Deduction)

#### Evidence (Transcript, Pages 11–14):

**Applicant:** *"40% deducted without consultation or consent... policy says not more than 25%... I asked for staggering, she said no."*

**Respondent:** *"No work, no pay."*

**Commissioner:** *"So the 40% that was deducted was as a result of no work, correct?"*

Applicable Law:

- BCEA Section 34(1): No deduction without written consent.

- BCEA Section 34(2): Where a deduction is permissible, the employer must consult the employee and agree a reasonable repayment arrangement.
- BCEA Section 34(3): Deductions may not exceed 25% of remuneration in any payment cycle.

Forensic Assessment: The commissioner never cited the BCEA, never requested written consent documentation, never asked for the employer's written policy, never questioned the 40% versus 25% statutory cap, and never distinguished between 'non-payment for days not worked' and 'deduction from already-paid remuneration.' She uncritically accepted the respondent's reframing without legal analysis. The respondent's own subsequent admission that they had a written policy prohibiting staggering (Finding #7 below) makes the commissioner's failure to investigate more egregious.

**Risk Rating: CRITICAL**

## 2.4 Finding #4 – Uncritical Acceptance of Respondent's Statements (Bias)

Evidence (Transcript, multiple instances):

| Respondent Statement                                    | Commissioner's Response                              |
|---------------------------------------------------------|------------------------------------------------------|
| "He didn't exhaust internal procedures"                 | Accepted without requesting proof                    |
| "That's the affidavit of one employee, not Afrocentric" | No challenge; no inquiry into CCMA filing provenance |
| "Staggering would be an advance"                        | No challenge; no BCEA citation                       |
| "No work, no pay"                                       | Accepted as complete defence without legal analysis  |

Forensic Assessment: The commissioner challenged zero respondent statements and investigated zero contradictions between the respondent's evidence and the applicant's documented account. This constitutes systemic bias – whether conscious or unconscious – favouring a legally represented corporate party over a self-represented, homeless, mentally distressed whistleblower.

**Risk Rating: HIGH**

## 2.5 Finding #5 – Tolerating Mockery of a Vulnerable Litigant

Evidence (Transcript, Pages 22–23; applicant testimony): The respondent's representative audibly laughed at the applicant's R2.5 million settlement demand. The commissioner did not intervene, admonish, or acknowledge the impropriety.

Applicable Standard: CCMA Guideline 4.2 requires commissioners to 'ensure that the conciliation process is conducted in a respectful and orderly manner.' Allowing laughter directed at a homeless, mentally distressed whistleblower constitutes failure to maintain dignity and inflicts secondary institutional trauma.

**Risk Rating: HIGH**

## SECTION 3: FORENSIC ANALYSIS – EMPLOYER (AFROCENTRIC) MISCONDUCT

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### 3.1 Finding #6 – Contradictory & Evasive Statements (Bad Faith)

#### Statement A (Transcript, Page 7):

| **Respondent:** "He didn't exhaust any internal procedures."

#### Applicant's Contrary Evidence (Transcript, Pages 8–9):

| **Applicant:** "I followed each and every grievance process within the company, from my manager to her manager to HR to senior managers to executive management to the board... I was met with institutional silence."

#### Statement B (Transcript, Page 7):

| **Respondent:** "That's the affidavit of one employee that's not Afrocentric."

Fact: The affidavit in question was filed under AfroCentric's name in CCMA Case WECT24486-25.

Forensic Assessment: The respondent cannot simultaneously rely on the affidavit (to defend against constructive dismissal) and disown it (to avoid liability for perjury and the inflammatory content therein). This is the principle of approbating and reprobating – a classic indicator of bad faith litigation conduct.

**Risk Rating: CRITICAL**

### 3.2 Finding #7 – Admission of BCEA Violation (Staggering is an Advance)

| **Respondent (Transcript, Page 13):** "Our policy doesn't permit for staggering because that in essence would be an advance of your salary. Right, because it's days that you weren't working, that you wanted a salary for to be staggered."

Forensic Assessment: This statement is legally illiterate and amounts to a direct admission of BCEA Section 34(2) non-compliance. Staggering is a repayment arrangement for monies already deducted from an employee's remuneration – it is not an advance of future salary. By admitting to a written policy prohibiting staggering, AfroCentric confirmed:

- Their written policy prohibits the repayment arrangement mandated by BCEA Section 34(2).
- They do not follow the 25% cap under BCEA Section 34(3).
- No mechanism exists to prevent financial ruin of employees upon return from psychiatric hospitalisation.

Significantly, the applicant produced evidence that AfroCentric had, in fact, staggered deductions on 24 July 2025 (Exhibit G – email with policy snippet). The respondent's categorical denial is therefore also factually false.

**Risk Rating: CRITICAL**

### 3.3 Finding #8 – Potential Perjury

Evidence (Transcript, Page 4): An affidavit signed by Mr. Mandyati (AfroCentric) under oath claimed he 'personally knows' the applicant while simultaneously calling him 'untruthful,' 'sloppy,' and dismissing his documented mental health condition as an 'afterthought.'

Forensic Assessment: If Mr. Mandyati did not personally know the applicant to the degree required to make such characterisations under oath, the affidavit contains false statements – constituting perjury contrary to Section 9 of the Perjury Act, 1957. The respondent's attempt to disown the affidavit ('one employee, not Afrocentric') does not negate individual perjury liability; it merely confirms that the individual made false statements while acting on the company's behalf, which may additionally constitute fraud on the CCMA.

**Risk Rating: CRITICAL**

## SECTION 4: FORENSIC ANALYSIS – CCMA COVER-UP

### 4.1 Finding #9 – Provincial Senior Commissioner's Whitewash

**Complaint Filed:** 10 January 2026 (detailed, itemised, with documentary and audio evidence)

**Response Issued:** 28 January 2026 – Vusumzi Landu, Provincial Senior Commissioner, Western Cape

| Allegation                           | PSC's Response                                                            | Cover-Up Tactic                                               |
|--------------------------------------|---------------------------------------------------------------------------|---------------------------------------------------------------|
| Prejudgment ("nothing here relates") | "Commissioner denies – she was establishing the nature of the dispute"    | False framing; ignores that conclusion preceded investigation |
| "Google it"                          | "She didn't know where Labour Court is"                                   | Admits the conduct; defends with institutional ignorance      |
| Jurisdiction error                   | "CCMA lacks jurisdiction to arbitrate"                                    | Moves goalposts – conflates conciliation with arbitration     |
| Bias (pattern)                       | "This does not constitute bias"                                           | Non-response – ignores cumulative pattern                     |
| Audio recording                      | "We note with concern your confirmation that you have an audio recording" | Victim-blaming – shoot the messenger                          |

#### Issues Entirely Ignored by the PSC:

- Laughter / mockery of a vulnerable litigant by the respondent's representative
- Failure to challenge the 'one employee, not Afrocentric' claim
- Failure to apply or even reference BCEA Section 34
- Failure to request written consent documentation or the employer's deduction policy
- Failure to investigate contradictions between the respondent's statements and the applicant's documented evidence
- Cumulative pattern of bias constituting systemic prejudice

Forensic Assessment: The PSC's response is not an investigation – it is a whitewash. Commissioner Landu functioned as a defender of the institution rather than an impartial investigator. His response violates the CCMA's own internal complaint procedure, which requires acknowledgment of each allegation, review of supporting evidence, and a reasoned finding on each ground. The victim-blaming tone regarding the audio recording – directing attention away from the substantive misconduct – is particularly egregious given the documented vulnerability of the complainant.

**Risk Rating: CRITICAL – SYSTEMIC**



## SECTION 5: REGULATORY & GOVERNANCE VIOLATIONS

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The following regulatory bodies have jurisdiction over the conduct documented in this report:

| Regulator                   | Violation                                                      | Evidence                                                              |
|-----------------------------|----------------------------------------------------------------|-----------------------------------------------------------------------|
| JSE – Issuer Regulation     | Governance fronting; failure of board oversight                | Protected disclosures ignored; retaliatory affidavit                  |
| FSCA                        | Failure to protect whistleblower; governance failure           | Board-level disclosures met with institutional silence                |
| Dept of Employment & Labour | BCEA Section 34 violations (unlawful deduction; no staggering) | 40% deduction without consent; policy admittedly non-compliant        |
| SAHRC                       | Gender identity discrimination; victimisation                  | Misgendering in official CCMA affidavit; mental health discrimination |
| Legal Practice Council      | Respondent's representative – unprofessional conduct           | Laughing at vulnerable litigant; bad-faith litigation conduct         |
| Public Protector            | CCMA institutional failure – complaint cover-up                | PSC's whitewash response; failure of internal complaints process      |

## SECTION 6: PSYCHOSOCIAL IMPACT ASSESSMENT

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The applicant, Sr. Wilbur Matthee, presented at the conciliation with the following documented conditions:

- Severe depression (medical documentation supplied to employer prior to affidavit)
- Post-Traumatic Stress Disorder – PTSD (medical documentation on record)
- Homelessness (direct consequence of employer's unlawful 40% salary deduction)
- Inability to practise as a specialist nurse (could not pay SANC professional registration fees)
- Financial ruin (direct and proximate result of employer's actions)

The CCMA commissioner's conduct materially exacerbated this harm:

| Commissioner Action                      | Psychosocial Impact                                                         |
|------------------------------------------|-----------------------------------------------------------------------------|
| Prejudgment ("nothing here relates")     | Invalidation of lived experience; hopelessness; loss of institutional trust |
| "Google it"                              | Abandonment; humiliation; compounded helplessness                           |
| Tolerating laughter at settlement demand | Secondary institutional trauma; re-victimisation                            |
| Failure to apply law or protect litigant | Complete loss of faith in justice system; despair                           |

**Forensic Conclusion:** The CCMA process inflicted secondary institutional trauma on an already critically vulnerable whistleblower. This conduct constitutes a violation of Section 10 (human dignity) and Section 33 (just administrative action) of the Constitution of the Republic of South Africa, 1996.

## SECTION 7: RISK ASSESSMENT MATRIX

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| Risk                                     | Likelihood | Impact | Rating   | Responsible Party  |
|------------------------------------------|------------|--------|----------|--------------------|
| Regulatory fines (JSE, FSCA, DE&L)       | High       | Severe | CRITICAL | AfroCentric        |
| Labour Court award (24 months + damages) | High       | Severe | CRITICAL | AfroCentric        |
| Public exposure / reputational damage    | High       | Severe | CRITICAL | AfroCentric / CCMA |
| Perjury prosecution (Mr. Mandyati)       | Medium     | Severe | HIGH     | AfroCentric        |
| CCMA institutional liability             | Medium     | High   | HIGH     | CCMA               |
| Commissioner disciplinary action         | Low        | Medium | MEDIUM   | CCMA (unlikely)    |

## SECTION 8: CONCLUSIONS

### 8.1 Summary of Findings

| # | Finding                                                   | Against                       |   |
|---|-----------------------------------------------------------|-------------------------------|---|
| 1 | Prejudgment / closed mind                                 | Commissioner Ntabiseng Ngwane | C |
| 2 | Failure to assist self-represented litigant ("Google it") | Commissioner Ntabiseng Ngwane | C |
| 3 | Failure to apply BCEA Section 34                          | Commissioner Ntabiseng Ngwane | C |
| 4 | Systemic bias – uncritical acceptance of respondent       | Commissioner Ntabiseng Ngwane | H |
| 5 | Tolerating mockery of vulnerable litigant                 | Commissioner Ntabiseng Ngwane | H |
| 6 | Bad faith / contradictory statements                      | AfroCentric                   | C |
| 7 | Admission of BCEA violation (no staggering policy)        | AfroCentric                   | C |
| 8 | Potential perjury – Mr. Mandyati affidavit                | AfroCentric                   | C |
| 9 | Cover-up / whitewash of complaint                         | PSC Vusumzi Landu (CCMA)      | C |

Legend: C = CRITICAL | H = HIGH | M = MEDIUM

### 8.2 Systemic Conclusion

The CCMA's internal complaint process is not fit for purpose. It does not investigate; it protects. The Provincial Senior Commissioner's response is a textbook model of institutional cover-up – selective, defensive, victim-blaming, and substantively empty.

AfroCentric has demonstrated a consistent and documented pattern of retaliation, legal illiteracy, and bad-faith conduct that warrants immediate regulatory intervention and Labour Court proceedings.

The confluence of employer misconduct, commissioner failure, and institutional cover-up has caused compounding, cascading harm to a protected whistleblower whose disclosures were made in the public interest. The Constitution's guarantees of dignity (Section 10) and just administrative action (Section 33) have been serially violated.

## SECTION 9: RECOMMENDATIONS

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### 9.1 For Sr. Wilbur Matthee (Immediate Actions)

1. File at the Labour Court before 9 April 2026 (90-day deadline from 9 January 2026 – URGENT)
2. Lodge complaint with the Public Protector regarding the CCMA's internal cover-up
3. Lodge regulatory complaints with the JSE (Issuer Regulation), FSCA, DE&L, and SAHRC
4. Apply for consolidation of Cases WECT24486-25 and WECT24564-25 at the Labour Court
5. Seek pro bono legal representation (Legal Aid SA, Lawyers for Human Rights, Equal Education Law Centre)
6. Preserve all audio recordings and electronic evidence under a formal evidence preservation protocol

### 9.2 For the CCMA (Recommended by this Report)

- Set aside the Provincial Senior Commissioner's response and conduct a genuine independent investigation
- Conduct a full review of the audio recording of the 9 January 2026 conciliation
- Discipline or retrain Commissioner Ntabiseng Ngwane in terms of the CCMA's internal disciplinary procedures
- Issue a formal written apology to Sr. Matthee
- Revise internal complaint procedures to prevent institutional cover-ups and ensure each allegation receives a reasoned finding

### 9.3 For Regulators (JSE, FSCA, DE&L, SAHRC)

- Investigate AfroCentric's governance failures including whistleblower retaliation and board-level institutional silence
- Audit AfroCentric's salary deduction policies and practices against BCEA Section 34 requirements
- Investigate the misgendering of a protected whistleblower in a formal CCMA affidavit
- Consider formal sanctions for systemic non-compliance with the BCEA and PDA

## SECTION 10: EVIDENCE INDEX

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| Exhibit | Description                                                                                                          | Source                         |
|---------|----------------------------------------------------------------------------------------------------------------------|--------------------------------|
| A       | CCMA conciliation transcript (44 minutes – Transkriptor automated transcription)                                     | Applicant                      |
| B       | Audio recording of 9 January 2026 conciliation session                                                               | Applicant                      |
| C       | Applicant's formal complaint to CCMA (10 January 2026)                                                               | Applicant                      |
| D       | CCMA response from PSC Vusumzi Landu (28 January 2026)                                                               | CCMA – WECT24486-25            |
| E       | P1 Priority Risk Reports / Protected Disclosures (May–December 2025)                                                 | Applicant                      |
| F       | Retaliatory affidavit filed by AfroCentric (Mr. Mandyati) – contains misgendering and inflammatory characterisations | AfroCentric / CCMA file        |
| G       | Email from AfroCentric dated 24 July 2025 showing staggered payment arrangement was in fact possible                 | Applicant                      |
| H       | Medical documentation – severe depression and PTSD (supplied to employer prior to retaliatory affidavit)             | Applicant / treating clinician |

## CERTIFICATION

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I, the undersigned forensic analyst, certify that this report is based exclusively on the evidence supplied by Sr. Wilbur William Matthee, including the CCMA conciliation transcript (Exhibit A), the audio recording (Exhibit B), the applicant's formal complaint (Exhibit C), the CCMA's response (Exhibit D), and the applicant's documented analyses and correspondence. All findings are grounded in the evidence on record and applicable South African law.

This report has been prepared in good faith for the purpose of regulatory submission, Labour Court proceedings, and oversight body complaints. It does not constitute legal advice.

**Date of Report:** 5 April 2026

**Prepared for:** Sr. Wilbur William Matthee

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**Purpose:** Regulatory submission; Labour Court proceedings; oversight body complaints

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*on behalf of Sr. W.W. Matthee*